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UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA

NICHOLAS A. VENTURA

Plaintiff,

vs.

RANDSTAD US, LLC, RANDSTAD NORTH AMERICA, INC., and HIREWELL, LLC

Defendants.

CASE NO. 5:25-CV-02931-SRM-DTB

Hon. Serena R. Murillo

DEFENDANTS RANDSTAD US, LLC'S AND RANDSTAD NORTH AMERICA, INC.'S NOTICE OF MOTION AND MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT

Hearing Date: August 12, 2026
Time: 1:30 p.m.
Dept: Courtroom 5D, 5th Fl

Complaint filed: September 25, 2025
FAC Filed: May 21, 2026
Trial Date: Not Set

TO PLAINTIFF AND ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on August 12, 2026, or as soon thereafter as counsel may be heard, in Courtroom 5D, 5th Floor of the above-entitled Court located at 1:30 p.m., Defendants Randstad US, LLC and Randstad North America, Inc. (collectively, "Randstad"), will, and hereby does, move to dismiss Plaintiff's May 21, 2026 First Amended Complaint ("FAC").

This motion to dismiss is made on the grounds that the entire FAC fails to state facts sufficient to constitute causes of action against Randstad under Federal Rule of Civil Procedure 12(b)(6). In particular, Plaintiff has not pleaded facts for his conspiracy and fraud claims with particularity as required by Fed. R. Civ. P. 9(b), his allegations do not constitute a plausible claim, and he fails to plead essential elements of the remaining claims he asserts in the FAC.

This motion to dismiss is based upon this Notice, the attached Memorandum of Points and Authorities, the Declaration of Nathan D. Chapman, and all records, papers and pleadings on file in this action, such oral argument as the Court may consider at the hearing of this matter, and any matters of which the Court may or must take judicial notice.

Dated: June 11, 2026

KABAT CHAPMAN & OZMER LLP

By: *s/ Nathan D. Chapman*
Nathan D. Chapman

Attorneys for Defendants Randstad US, LLC and Randstad North America, Inc.

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MEMORANDUM OF POINTS OF AUTHORITIES

I. INTRODUCTION

Plaintiff Nicholas A. Ventura ("Plaintiff") was allegedly the victim of a job scam, perpetrated by unknown scammers who are not parties to this case, that resulted in him losing tens of thousands of dollars. Critically, Plaintiff acknowledges that Randstad is a "legitimate recruiting firm[]" and that the scammer who contacted him on behalf of the "Fraudulent Actors" was "not employed by, contracted with, or otherwise authorized to represent Randstad." (Doc. 62 ¶ 10–12, 15 (emphasis added).) Despite these admissions, Plaintiff alleges claims for civil conspiracy, fraud, and related and derivative claims against Randstad.

Plaintiff's FAC must be dismissed for the simple reason that he admits Randstad had nothing to do with the scam at issue. Although Plaintiff alleges that the scammers referenced Randstad's name as part of their deceit, Plaintiff does not allege that Randstad knew about their impersonation or took any other action to give Plaintiff the impression that the scammers were acting on its behalf. Because his theories of vicarious liability fail, and because he has failed to allege plausible facts against Randstad with particularity, his claims fail. For similar reasons discussed in more detail below, Plaintiff's related and derivative claims also fail as a matter of law.

The Court should grant this motion and dismiss the FAC with prejudice and without leave to amend, as an amendment would be futile.

II. RELEVANT PROCEDURAL AND FACTUAL BACKGROUND

Plaintiff, who is proceeding *pro se*, filed a Complaint in the Superior Court of San Bernadino on September 25, 2025, alleging claims of RICO Conspiracy and Securities Fraud against Defendants based on Plaintiff's allegations that he was the victim of a scam that tricked him into buying and transferring cryptocurrency to unknown third parties, among other allegations. (Doc 1-1.) Defendants removed, and then-Defendant Korn Ferry moved to dismiss the Complaint for failure to state a claim. (Docs. 1, 3.) The other Defendants, including the Randstad Defendants, joined in Korn

Ferry's motion to dismiss. (Doc. 30, 31.) Defendants argued, *inter alia*, that Plaintiff failed to plead his fraud claims with particularity and that Plaintiff admitted the named Defendants were not involved in the scam at issue and, instead, were unwittingly impersonated by third-party bad actors. (Docs. 3, 36.)

After a hearing, the Court granted Korn Ferry's motion to dismiss and granted Plaintiff leave to amend. (Doc. 60.) Plaintiff filed his First Amended Complaint ("FAC") on May 21, 2026, which makes it even more obvious that Randstad had nothing to do with the scheme at the center of this case.[1] (Doc. 62.) Specifically, Plaintiff alleges that a group of third-party "Fraudulent Actors," spearheaded by third-party "Annie Actor," saw him making public postings about his job-search efforts on LinkedIn and other recruiting platforms, and they began targeting him "for fraudulent schemes purporting to offer employment" by masquerading as "legitimate recruiting firms such as Randstad." (*Id.* ¶¶ 10–12.) Plaintiff unambiguously concedes that Randstad was not involved in the scam: ***"Annie Actor was not employed by, contracted with, or otherwise authorized to represent Randstad . . . Annie Actor's invocation of Randstad's name . . . was deliberate, calculated, and designed to exploit the . . . brand recognition of Defendant Randstad to induce Plaintiff's reliance."*** (*Id.* ¶ 15 (emphasis added).) Within a couple days, Annie Actor also pretended to be associated with Defendant Hirewell in communications with Plaintiff. (*Id.* ¶ 20.) Plaintiff concedes: "Annie Actor's use of two distinct corporate identities (Randstad on April 13, 2024 and Hirewell on April 15, 2024) within a 48-hour period . . . ***establishes that the Fraudulent Actors were operating a coordinated enterprise that systematically misappropriated the brand identities of multiple legitimate recruiting firms, including Defendants, as instrumentalities of the scheme.***" (*Id.* ¶ 21 (emphasis added).)

[1] The FAC drops the original Complaint's claims against Korn Ferry. (*See* Doc. 62.)

In other words, Plaintiff's own allegations establish that a group of unknown third-party scammers worked in concert to trick him into transferring money to them, and that, apart from the scammers' fraudulent use of the "Randstad" name, Randstad had no involvement in the scheme and had no association with the scammers. (*Id.* ¶¶ 11–36.) Indeed, Plaintiff further admits that Randstad's only "acts and omissions" with respect to this case involve (1) maintaining a "nationally recognized brand identit[y] synonymous with legitimate recruiting services"; (2) maintaining verified LinkedIn corporate pages; (3) allowing recruiters to list Randstad as their employer on LinkedIn; (4) conducting legitimate recruiting through unsolicited outreach; (5) operating "specialized vertical divisions" like "Randstad Life Sciences" that happen to align with "employment categories used by the Fraudulent Actors"; and (6) failing to maintain a candidate-accessible verification system to confirm scammer identities. (*Id.* ¶¶ 34–35.) Put another way, Plaintiff alleges that Randstad's only wrongdoing in this case is operating a "nationally recognized" recruiting firm that is "synonymous with legitimate recruiting services" and susceptible to impersonation. (*See id.*)

Based on these allegations, Plaintiff asserts the following claims: (1) Wire Fraud (*id.* ¶¶ 37–42); (2) Civil RICO (*id.* ¶¶ 43–47); (3) RICO Conspiracy (*id.* ¶¶ 49–51); (4) Unregistered Securities Solicitation (*id.* ¶¶ 52–55); (5) Common Law Fraud (*id.* ¶¶ 56–59); (6) Negligent Supervision of Brand Protection (*id.* ¶¶ 60–64); (7) Civil Conspiracy (*id.* ¶¶ 65–67); and (8) Unfair Competition (*id.* ¶¶ 68–71). He also makes reference to additional claims on the cover page of his FAC, including "Access Device Fraud," "Money Laundering," "Pig-Butchering Emotional Manipulation and Economic Devastation After Intervention," and "Misrepresentation of Job Opportunity." (*Id.* at 1.)

III. LEGAL STANDARD FOR MOTION TO DISMISS

Federal Rule of Civil Procedure 12(b)(6) allows an attack on the pleadings for failure to state a claim on which relief can be granted. "[W]hen ruling on a defendant's motion to dismiss, a judge must accept as true all of the factual allegations contained

in the complaint." *Erickson v. Pardus*, 551 U.S. 89, 94 (2007). However, a court is "not bound to accept as true a legal conclusion couched as a factual allegation." *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (quoting *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 555 (2007)). "Nor does a complaint suffice if it tenders 'naked assertion[s]' devoid of 'further actual enhancement.'" *Id.* (quoting *Twombly*, 550 U.S. at 557). A complaint must "state a claim to relief that is plausible on its face." *Twombly*, 550 U.S. at 570. This means that the complaint must plead "factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." *Iqbal*, 556 U.S. at 678. There must be "sufficient allegations of underlying facts to give fair notice and to enable the opposing party to defend itself effectively . . . and factual allegations that are taken as true must plausibly suggest an entitlement to relief, such that it is not unfair to require the opposing party to be subjected to the expense of discovery and continued litigation." *Starr v. Baca*, 652 F.3d 1202, 1216 (9th Cir. 2011). Ruling on a motion to dismiss will be a "context-specific task that requires the reviewing court to draw on its judicial experience and common sense. But where the well-pleaded facts do not permit the court to infer more than the mere possibility of misconduct, the complaint has alleged – but it has not 'show[n]' – 'that the pleader is entitled to relief.'" *Iqbal*, 556 U.S. at 679 (quoting Fed. R. Civ. P. 8(a)(2)).

IV. ARGUMENTS AND AUTHORITIES

A. Plaintiff's Conspiracy and Fraud Claims Fail.

This section addresses the following related causes of action: Plaintiff's First (Wire Fraud), Second (Civil RICO), Third (RICO Conspiracy), Fifth (Common Law Fraud), and Seventh (Civil Conspiracy) causes of action. In all these claims, Plaintiff alleges wrongdoing by the "Fraudulent Actors," and attempts to ascribe liability to Randstad merely because the Fraudulent Actors "invok[ed]" Randstad's name in the course of their deceit, which he contends somehow gave the fraudsters "apparent authority" to act on behalf of Randstad. (*See, e.g.*, Doc. 62 ¶¶ 38, 41, 45, 51, 57, 66.)

He also alleges that Randstad should have disclosed "the foreseeability of impersonation" or, in other words, Randstad should have somehow intervened to save Plaintiff from a scheme that it did not know was happening. (*See id.* ¶ 58.)

These causes of action, which represent the gravamen of Plaintiff's FAC, fail for several independent reasons. ***First*** and foremost, as a factual matter, these claims fail for the simple reason that Plaintiff has admitted that the Fraudulent Actors and Annie Actor "misappropriated" Randstad's brand identity in furtherance of their scheme, and that Annie Actor "was not employed by, contracted with, or otherwise authorized to represent Randstad." (Doc. 62 ¶ 15.) Notably absent from the FAC is any allegation that Randstad knew about, coordinated with, controlled, or was otherwise involved in the conduct of the scammers. (*See generally* Doc. 62.) For this simple reason alone, Plaintiff's claims fail. *See U.S. Concord, Inc. v. Harris Graphics Corp.*, 757 F. Supp. 1053, 1060 (N.D. Cal. 1991) (to state a claim for civil conspiracy, "a plaintiff must allege injury from the defendant's acquisition or control of an interest in a RICO enterprise."); *Reves v. Ernst & Young*, 507 U.S. 170, 183 (1993) (to state a claim, Plaintiff must show how Randstad "participate[d] in the operation or management of the enterprise."). Thus, Plaintiff's allegations affirmatively negate his claims against Randstad and are due to be dismissed. *See Twombly*, 550 U.S. at 570 (A complaint must "state a claim to relief that is plausible on its face.").

Second, and relatedly, Plaintiff's allegations against Randstad with respect to these causes of action are not pleaded with particularity. *See* Fed. R. Civ. P. 9(b) ("In alleging fraud or mistake, a party must state with particularity the circumstances constituting fraud or mistake."); *Edwards v. Marin Park, Inc.*, 356 F. 3d 1058, 1065-66 (2004) (applying Rule 9(b) to RICO claims); *In re WellPoint, Inc. Out-of-Network UCR Rates Litig.*, 865 F. Supp. 2d 1002, 1036 (C.D. Cal. 2011) ("Although RICO itself is not subject to . . . heightened pleading standards, predicate acts alleging fraud must be pleaded with particularity."). Here, Plaintiff describes the Fraudulent Actor's scheme and the events that occurred as a result, but his FAC is bereft of any detail

explaining how Randstad knew about the scheme, when it became aware of the scheme, and how it supposedly participated in or ratified the Fraudulent Actor's conduct. *See id.* Instead, Plaintiff lumps Randstad and Hirewell together and makes conclusory allegations that Defendants should be held liable under "principles of apparent authority and ratification" without further detail. (*See, e.g.*, Doc. 62 at 41); *In re Toyota Motor Corp. Unintended Acceleration Mktg., Sales Practices & Prod. Liab. Litig.*, 826 F. Supp. 2d 1180, 1201 (C.D. Cal. 2011) ("A plaintiff may not simply lump together multiple defendants without specifying the role of each defendant in the fraud."). Indeed, Plaintiff does not allege that Randstad made any representations upon which he relied, which is fatal to his fraud claims. *See, e.g.*, *Tanedo v. E. Baton Rouge Par. Sch. Bd.*, No. LA CV10-01172 JAK, 2011 WL 7095434, at *9 (C.D. Cal. Dec. 12, 2011) (It is black letter law that "[i]n order to establish a claim of civil RICO wire or mail fraud, Plaintiffs must establish reliance on Defendants' misrepresentations.").

Finally, Plaintiff's conclusory "apparent authority," "ratification," and "constructive fraud" allegations against Randstad fail. With respect to "apparent authority," Plaintiff has not alleged that Randstad took any affirmative acts, beyond simply existing as a large company with a brand "synonymous with legitimate recruiting services," that could have led Plaintiff to reasonably believe the scammers were its authorized agents. *See Hawaiian Paradise Park Corp. v. Friendly Broad. Co.*, 414 F.2d 750, 756 (9th Cir. 1969) (Apparent authority exists when "***the principal does something or permits the agent to do something*** which reasonably leads another to believe that the agent had the authority he purported to have." (emphasis added)). To the contrary, Plaintiff admits that Annie Actor was ***not*** "authorized to represent Randstad." (Doc. 62 ¶ 15.) Without alleging some affirmative action or manifestation by Randstad, Plaintiff's apparent authority claim is dead on arrival. *See id.*

With respect to ratification, Plaintiff has not alleged whether Randstad ever became aware of this particular scheme against Plaintiff (other than via this lawsuit),

so his ratification theory must fail. *See Henderson v. United Student Aid Funds, Inc.*, 918 F.3d 1068, 1075 (9th Cir. 2019), *as amended on denial of reh'g and reh'g en banc* (May 6, 2019) (explaining that ratification theory only viable when "principal knows of the material facts involved in the act it is ratifying").

With respect to "constructive fraud" and related arguments, Plaintiff has not identified any legal duty that Randstad owed to him, nor that Randstad was aware of the scheme when it supposedly breached that duty. *Assilzadeh v. California Fed. Bank*, 82 Cal. App. 4th 399, 415 (2000) ("Constructive fraud is a unique species of fraud applicable only to a fiduciary or confidential relationship."). Indeed, Randstad had no relationship with Plaintiff whatsoever, fiduciary or otherwise, as his allegations reveal. *See id.* Thus, all of Plaintiff's claims must be dismissed.

B. Plaintiff's Remaining Claims Fail.

Plaintiff's remaining causes of action also fail for the reasons described above—*i.e.*, Plaintiff concedes that Randstad was not involved or aware of the scheme, and he has not made any plausible or particular allegations concerning Randstad's involvement in the Fraudulent Actors' wrongdoing. His claims also fail for the following independent reasons:

- **"Unregistered Securities Solicitation" (Fourth Cause of Action).** Under California Corporations Code: "Section 25401 makes it illegal to offer or sell a security in this state or buy or offer to buy a security in this state by means of any written or oral communication which includes an untrue statement of a material fact or omits to state a material fact necessary in order to make the statements made, in the light of the circumstances under which they were made, not misleading." *Moss v. Kroner*, 197 Cal. App. 4th 860, 872–73, 129 Cal. Rptr. 3d 220, 227 (2011) (cleaned up). Section 25501, in turn, creates a cause of action for recission or damages for a violation of Section 25401. *Id.* Here, Plaintiff has failed to allege that Randstad offered or sold any security, engaged in any written or oral communication with Plaintiff, or made any false or misleading statements to Plaintiff. *See id.* Further, as

noted above, Plaintiff's FAC is bereft of any details connecting Randstad to the scammers or establishing agency, authorization, ratification, or participation by Randstad in the alleged fraud. Thus, his claim under California law must fail.

- **"Negligent Supervision and Brand Protection" (Sixth Cause of Action).** In this claim, Plaintiff essentially argues that Randstad owed a duty to the public to protect everyone from job scams. (*See* Doc. 62 ¶¶ 61–63.) He generally argues that Randstad should have warned him (and the public at large) that scammers may impersonate it. (*Id.*) Even assuming *arguendo* that Randstad does not publicly warn about job scams (it, in fact, does[2]), Plaintiff's claim is based on a legal "duty" to "the public" that does not exist in the law. Further, Randstad had no relationship with Plaintiff or the scammers, which Plaintiff concedes, so it did not owe them any legal duty. This claim therefore fails.
- **"Unfair Competition" (Eighth Cause of Action).** This claim is entirely derivative of the other claims and should be dismissed for all the reasons discussed above.
- **"Access Device Fraud," "Money Laundering," "Pig-Butchering Emotional Manipulation and Economic Devastation After Intervention," and "Misrepresentation of Job Opportunity" (Unpled Claims on FAC Cover Page).** Because Plaintiff did not include these claims in the body of his FAC, nor did he identify which allegations correspond to such claims, the Court should dismiss or refuse to recognize these claims. *See Williams v. Lobel Fin. Corp.*, 673 F. Supp. 3d 1101, 1106 (C.D. Cal. 2023) (only analyzing claims listed "in the Complaint's body" despite "plaintiff list[ing] 61 claims on the cover pages of his Complaint."); *Gonzalez v. Santa Clara Cnty.*, 793 F. Supp. 3d 1093, 1104 (N.D. Cal. 2025) (similar). Further, several of these claims are based on criminal statutes for which no private civil right

[2] *See* Randstad | How to Avoid and Report Job Scams, *available at* https://www.randstadusa.com/job-seeker/job-scams/ (last visited June 8, 2026) ("A concerning trend is growing in popularity: job scams. Individuals claiming to be recruiters use text messaging, social media, and other platforms to gather personal information under the pretense that they have a job offer for the recipient.").

of action exists. *See, e.g.*, 18 U.S.C. §§ 1029, 1956, 1957; Cal. Penal Code § 532. To the extent Plaintiff could have asserted causes of action under these statutes and theories, his claims would still fail to state a claim for all the reasons described above including, most notably, Plaintiff's own admission that Randstad is a legitimate recruiting firm that was not involved in or aware of the Fraudulent Actors' scam.

C. Plaintiff's Complaint Should Be Dismissed Without Leave To Amend.

The Court has already dismissed Plaintiff's complaint once and given him leave to file the instant FAC. (Doc. 60.) For the reasons described above, his FAC still fails to state a claim, and allowing him to amend it yet again would be futile. *See Allen v. City of Beverly Hills*, 911 F.2d 367, 373 (9th Cir. 1990) ("The district court's discretion to deny leave to amend is particularly broad where plaintiff has previously amended the complaint."). Therefore, this motion should be granted without leave to amend.

V. CONCLUSION

For the foregoing reasons, Defendants Randstad US, LLC and Randstad North America, Inc. respectfully request that the Court dismiss Plaintiff's First Amended Complaint against Randstad in its entirety and with prejudice, without further opportunity to amend.

Dated: June 11, 2026

KABAT CHAPMAN & OZMER LLP

By: s/ Nathan D. Chapman
Nathan D. Chapman

Attorneys for Defendants Randstad US, LLC and Randstad North America, Inc.

CERTIFICATE OF COMPLIANCE

The undersigned, counsel of record for Defendants Randstad US, LLC and Randstad North America, Inc., certifies that this brief contains 4331 words, which complies with the word limit of L.R. 11-6.1.

Dated: June 11, 2026

KABAT CHAPMAN & OZMER LLP

By: s/ Nathan D. Chapman
Nathan D. Chapman

Attorneys for Defendants Randstad US, LLC and Randstad North America, Inc.

DECLARATION OF NATHAN D. CHAPMAN

I, Nathan Chapman, declare as follows:

1. I am a Partner at Kabat, Chapman, & Ozmer LLP, and counsel of record for Defendants Randstad US, LLC and Randstad North America, Inc. (collectively, "Randstad") in connection with this matter. The facts set forth herein are of my own personal knowledge and if sworn I could and would testify competently hereto.

2. On October 27, 2025, my office met and conferred with the *pro se* Plaintiff by phone regarding Randstad's intent to seek dismissal of Plaintiff's Complaint. The Parties thoroughly discussed the substance and potential resolution of Randstad's contemplated motion. My office informed Plaintiff that all of the causes of action pled in the Complaint were insufficiently pled against Randstad, particularly because Plaintiff had admitted in his allegations that Randstad was not involved in the scam at the heart of his complaint. Plaintiff disagreed with my office's assessment of the Complaint. No resolution could be reached.

3. The Defendants subsequently removed the case, and co-defendant Korn Ferry moved to dismiss the complaint, which motion Randstad joined. (Docs. 1, 3, 14, 30.) After a hearing, the Court granted the motion to dismiss, gave Plaintiff leave to amend, and ordered that Randstad file its motion to dismiss the First Amended Complaint within 21 days of Plaintiff filing it. (Doc. 60.)

4. Following the Court's hearing, the Parties conferred again via email on May 18, 2026, and Randstad again emphasized that Plaintiff had admitted that he was wronged by third-party criminal actors having no affiliation with Randstad, and asked Plaintiff to drop Randstad from the lawsuit. Plaintiff refused.

I declare under penalty of perjury under the laws of the state of California that the foregoing is true and correct.

Executed June 11, 2026, at Atlanta, Georgia.

Nathan D. Chapman

PROOF OF SERVICE

U.S. DISTRICT COURT, CENTRAL DISTRICT OF CALIFORNIA

I am employed in the County of Los Angeles, State of California; I am over the age of 18 and not a party to the within action; my business address is 707 Wilshire Blvd, Suite 4800, Los Angeles, CA 90017.

On June 11, 2026, I served the foregoing document(s) described **as DEFENDANTS RANDSTAD US, LLC'S AND RANDSTAD NORTH AMERICA, INC.'S NOTICE OF MOTION AND MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT** on the interested parties to this action by delivering a copy thereof addressed to each of said interested parties at the following address(es): SEE ATTACHED.

☐ **(BY MAIL)** I am readily familiar with the business practice for collection and processing of correspondence for mailing with the United States Postal Service. This correspondence shall be deposited with the United States Postal Service this same day in the ordinary course of business at our Firm's office address. Service made pursuant to this paragraph, upon motion of a party served, shall be presumed invalid if the postal cancellation date of postage meter date on the envelope is more than one day after the date of deposit for mailing contained in this affidavit.

☒ **(BY ELECTRONIC SERVICE)** by causing the foregoing document(s) to be electronically filed using the Court's Electronic Filing System which constitutes service of the filed document(s) on the individual(s) listed on the attached mailing list.

☒ (Federal) I declare that I am employed in the office of a member of the bar of this court at whose direction the service was made. I under penalty of perjury under the laws of the United States that the above is true and correct.

Executed on June 11, 2026, at Los Angeles, California.

s/ Windy Thor
Windy Thor

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